

RESPONDENT'S AGREEMENT AND DISCLOSURES

Persons and firms participating in the procurement specified below (the "Procurement") must sign and submit this agreement ("Agreement") before or with a Proposal (defined below). Failure to execute, submit, and abide by this Agreement is grounds for disqualification and other consequences under law.

Procurement: **Janitorial Services for Ancillary Facilities**

Procurement Number: **06507-NTT-00-GS-MA**

A. Definitions

In this Agreement and the attached Conflict of Interest Questionnaire (Form CIQ):

- (1) **"Proposal"** means a bid, proposal, or response submitted for the Procurement.
- (2) **"Respondent"** means a person or entity that submits a Proposal.
- (3) **"Respondent Party"** means a Respondent and each of its owners, directors, officers, employees, agents, and representatives.
- (4) An **"NTTA Representative"** means an NTTA director, officer, employee, agent, or other person acting on behalf of NTTA.
- (5) A **"family member"** means your spouse or domestic partner, children, step-children, sons-in-law, daughters-in-law, parents, step-parents, mothers-in-law, fathers-in-law, your divorced spouse if you had a child together who is now living, and parents of your divorced or deceased spouse if you and that spouse had a child together who is now living.
- (6) A **"family relationship"** includes every person included in the definition of "family member," PLUS the following additional persons: your brothers, sisters, grandparents, grandchildren, great-grandparents, great-grandchildren, aunts, uncles, nephews, nieces, brothers-in-law, sisters-in-law, spouse's grandparents, spouse's grandchildren, grandchildren's spouses, and grandparents' spouses.
- (7) **"Confidential Information"** means all information that is not publicly disclosed by NTTA, relating to NTTA or its operations, finances, patrons, personnel, or consultants that is furnished to or obtained, directly or indirectly, by a Respondent Party and other information that a Respondent Party should reasonably know NTTA considers confidential. Confidential Information includes, but is not limited to, information regarding: NTTA's security operations, equipment, plans, policies, procedures, or devices; NTTA's ideas, processes, know-how, and techniques; NTTA's business methods, financial data and information, accounting, and financial-control procedures; NTTA's products, services, policies, violation-enforcement system, patrons, TollTag customers, personnel; and any other aspect of NTTA's operations.
- (8) A **"debarment"** means an oral or written finding or decision barring, suspending, or otherwise limiting a person's or entity's right to engage in any business activity with a governmental entity.

B. Representations, Warrants, and Covenants

(1) **No Collusion** Respondent warrants and covenants that: (1) the Proposal is not made on behalf of any undisclosed person or entity; (2) no Respondent Party has directly or indirectly solicited anyone to submit a false or sham Proposal; (3) Respondent has not directly or indirectly sought or agreed to fix any profit, price, or cost element in any Proposal; (4) all statements contained in the Proposal are true, complete, and correct; (5) no Respondent Party has directly or indirectly provided its prices or costs to anyone else in order to effectuate a collusive or sham Proposal; and (6) Respondent will not directly or indirectly divulge the terms of its Proposal to any other proposer or seek to obtain such information from another proposer until after award of the contract or NTTA's rejection of all Proposals and cancellation of the procurement.

(2) **Confidential Information** Respondent will maintain NTTA's Confidential Information in strict confidence, and, except as approved in writing by NTTA's General Counsel or as otherwise required by applicable law, no Respondent Party will disclose NTTA's Confidential Information to any other person or entity. Respondent will be responsible for all loss, cost, damage, or expense resulting directly or indirectly from the release or unauthorized use of Confidential Information by any Respondent Party, any contractor or subcontractor of Respondent, or any third party that gains access to Confidential Information through a Respondent Party.

(3) **No Conflicts of Interest**

(a) Respondent warrants and covenants that no Respondent Party has offered or given to, or solicited or received from, an NTTA Representative any gift, benefit, or other thing of value that (1) is consideration for a decision, recommendation, or other exercise of discretion regarding the Procurement, or (2) is intended to or might influence an NTTA Representative regarding the Procurement. Furthermore, from the date the Procurement is advertised by NTTA until either (1) a contract is executed or (2) NTTA formally terminates the Procurement, whichever occurs first, a Respondent Party will not offer or give to, nor solicit or accept from, any NTTA Representative any gift, benefit, or other thing of value whatsoever. This provision does not apply to compensation under a contract already in place.

(b) Respondent represents and covenants that no Respondent Party has or will have any direct or indirect financial, personal, or other interest or relationship that will conflict in any manner with Respondent's performance under the contract for this Procurement.

(c) If the undersigned or any owner, officer, director, or similar executive-level personnel in Respondent's organization is now aware of any of the following facts, place an "X" in the "Yes" box **and describe those facts in an attachment to this Agreement**; otherwise, place an "X" in the "No" box. If such a person later becomes aware of any such facts, Respondent covenants to promptly disclose them to NTTA's Ethics Officer:

Yes	No	Within the last twenty-four (24) months, an NTTA Representative or NTTA Representative's family member has had a financial interest (including real property) in, had a business relationship with, or been an employer or employee of, a Respondent Party.

Yes	No	An NTTA Representative is a Respondent Party or a Respondent Party's family member.

(d) Respondent has completed and executed the attached Conflict of Interest Questionnaire (Form CIQ) in accordance with the instructions accompanying Form CIQ and laws referenced therein (stating "none" in line 3 if Respondent has no knowledge of reportable information), and will complete and submit an updated Form CIQ when required by those instructions and applicable law. (NOTE: for purposes of Form CIQ, Respondent is a "vendor" and an NTTA Representative is a "local government officer.")

(4) Continuing Effect

Respondent agrees that this Agreement is important and material to the Procurement and will continue in effect after a contract is awarded. A Respondent Party's breach of this Agreement, material misrepresentation, or omission in connection with any part of this Agreement is cause to reject Respondent's Proposal, will make Respondent liable to NTTA for all damages that arise therefrom, and may trigger other consequences under law.

C. Disclosures

Please answer "Yes" for any event that occurred, in whole or in part, during the past five (5) years. Please attach additional pages explaining the nature and circumstances of each disclosed matter. Failure to respond to each question and/or to provide adequate explanations may lead to the rejection of the Proposal.

		YES	NO
1.	Has a federal, state, or local governmental entity proposed or issued a debarment against a Respondent Party?		
2.	Is there a past, pending, or threatened civil, criminal, administrative, or regulatory proceeding involving allegations that a Respondent Party: (a) made one or more material misrepresentations or omissions in a business transaction or (b) engaged in an act or omission in a business transaction that resulted in alleged damages that are greater than or equal to 10% of the Respondent's annual revenues?		
3.	Has a customer: (a) terminated a contract with Respondent for cause or default or (b) accepted damages from Respondent in lieu of contractual termination for cause or default?		
4.	Has Respondent learned of any reason why NTTA might be prohibited from doing business with a Respondent Party?		
5.	Has a Respondent Party had any professional license or certificate suspended or revoked?		
6.	Has a Respondent Party been convicted of a felony criminal offense?		
7.	Has Respondent sought bankruptcy protection in a United States Bankruptcy Court?		

The undersigned represents and warrants, under penalty of perjury, that: (1) (s)he is the **Chief Executive Officer** of **HWB Cleaning Services LLC** (2) (s)he is authorized to make the representations, warranties, and covenants in this Agreement on Respondent's behalf; and (3) the representations, warranties, and covenants set forth in this Agreement and any attachments are true and correct.

Signature: Humberto Dominguez

Date: 10/07/2026